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§ 63.1-211.3. Sanctions for licensed facilities.—A. The Commissioner may take the following actions regarding licensed child welfare agencies:

1. Place a licensed child welfare agency on probation upon finding that the licensee is substantially out of compliance with the terms of its license and the health and safety of children are at risk.

2. Reduce licensed capacity or prohibit new admissions when the Commissioner concludes that the agency cannot make necessary corrections to achieve compliance with regulations except by a temporary restriction of its scope of service.

3. Require that probationary status announcements, provisional licenses, and denial or revocation notices be posted in a prominent place at each public entrance of the licensed premises and be of sufficient size and distinction to advise consumers of serious or persistent violations.

4. Mandate training for the licensee or licensee's employees, with any costs to be borne by the licensee, when the Commissioner concludes that the lack of such training has led directly to violations of regulations.

B. The State Board of Social Services shall promulgate regulations to implement the provisions of this section.

2. That Chapter 801, as amended, of the Acts of Assembly of 1990 is repealed.

CHAPTER 731

An Act to amend and reenact §§ 15.1-676, 15.1-700, 15.1-808, 15.1-816, 15.1-830, and 15.1-933 of the Code of Virginia and to amend the Code of Virginia by adding a section numbered 15.1-760.1, relating to local government provisions, elections, and vacancies affected by the recodification of Title 24.1.

[S 574]

Approved March 28, 1993

Be it enacted by the General Assembly of Virginia:

1. That §§ 15.1-676, 15.1-700, 15.1-808, 15.1-816, 15.1-830, and 15.1-933 of the Code of Virginia are amended and reenacted and that the Code of Virginia is amended by adding a section numbered 15.1-760.1 as follows:

§ 15.1-676. Election of members of county board; filling vacancies.— (a) A. Notwithstanding the provisions of § 15.1-674 and 15.1-694 ; if , in any county operating as of December 1, 1993, under the county manager plan provided for in this chapter, a majority of the qualified voters voting on the question submitted in the election held as provided in subsection (c) of this section shall vote in favor of the election of the members of the county board and the filling of vacancies on the board as hereinafter provided in this section; then upon the entry of an order by the circuit court of the county setting forth the results of such election; the members of the county board shall thereafter be elected and vacancies on the board shall be filled as provided in this section.

(b) Notwithstanding the provisions of subsection (a); if a majority of the qualified voters in such election vote in favor of the election of the members of the county board as provided by subsection (f) hereof; then upon the entry of an order by the circuit court of the county setting forth the results of the election; the members of the county board shall thereafter be elected as provided in subsection (f) hereof.

(c) B. Each of such members shall take office on the first day of January after his election and shall hold office until his successor is elected and qualified. Two members of the county board shall be elected at the November 1995 election to succeed the members whose terms are expiring, and one member each shall be elected at the 1994, 1996, and 1997 November elections to succeed the members whose terms respectively are expiring. Thereafter at each regular November election there shall be elected one or more members of the county board to succeed the member or members whose terms expire on or before the first day of January 1 next succeeding such election ; . The members so elected shall be elected for terms of four years each and , shall take office on the first day of January 1 next succeeding their election , and shall hold office until their successors are elected and qualify .

(d) C. When any vacancy shall occur occurs in the membership of the county board , the judge of the circuit court of the county shall call a special election for the remainder of the unexpired term to be held not less than forty-five days and not more than sixty days thereafter; provided ; however, that if any vacancy occurs within one hundred eighty 180 days before the

expiration of a term of office, such *the* vacancy shall be filled by appointment by a majority vote of the remaining members of such *the* board within thirty days of the occurrence of such *the* vacancy after holding a public hearing with respect to such *the* appointment. The appointment shall be for the duration of the unexpired term. Notwithstanding the provisions of § 24.1-76 and any writs of election issued pursuant thereto, the county board, by majority vote prior to November 4, 1975, shall appoint a person to fill the remainder of the term of office of the county board member whose term would have regularly expired on December 31, 1975, which remainder is the period from November 5, 1975, through December 31, 1975. The person appointed by the judge of the circuit court to fill the vacancy in said office until the general election on November 4, 1975, or until his successor qualifies to serve in said office, shall continue to serve until the person appointed by the county board qualifies to serve in said office. The failure of the board to appoint a person to fill any such vacancy within the time specified shall not be construed to affect the validity of the actions of the board taken during such vacancy.

(e) The election to determine whether the members of the county board shall be elected as provided in paragraph (f) of this section shall be called and held as follows:

If a petition signed by two hundred or more qualified voters in any such county shall on or before the first day of April, 1958, be filed with the circuit court of the county, asking that a referendum be held on such question, the court or judge shall, on or before the first day of May, 1958, by an order entered of record, require the election officials of the county at the time prescribed by law for the next primary election to be held in July, 1958, to open a poll and take the sense of the qualified voters of the county on the questions as herein provided. The clerk of the county shall cause a notice of such election to be published in some newspaper, published or having a general circulation in the county, once a week for three consecutive weeks, and shall post a copy of such notice in the courthouse of the said county. The regular election officials of the county, at the time designated therein, shall open the polls at the various voting places in the county and conduct the election in such manner as is provided by law for other elections, insofar as the same is applicable. The election shall be by separate ballot, which shall be prepared by the electoral board and distributed to the various election precincts as in other elections. The ballots to be used shall be printed as follows:

Shall the members of the county board be elected biennially for four-year terms, as provided in paragraph (f) of § 15.1-676, as amended, of the Code of Virginia?

☐ Yes

☐ No

The election shall in all respects be held as provided in § 24.1-165 of the Code of Virginia.

(f) If the result of the election held as provided in paragraph (e) hereof be for the election of the members of the county board as provided in this paragraph then the provisions of this paragraph shall supersede all other provisions of this section and the members of the county board shall be elected as hereinafter set forth:

(1) The successors to the members whose terms expire in 1958 shall be elected for terms of two years; thereafter all such members shall be elected for four-year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January 1 of the year following their election.

(2) Successors to the members whose terms expire in 1959 and 1961 shall be elected for terms of three years at the November election in such years, respectively; thereafter all such members shall be elected for four-year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on the first day of January following their election.

(3) Successors to the members whose terms expire in 1960 shall be elected for terms of four years; thereafter all such members shall be elected for four-year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January 1 of the year following their election.

(4) Vacancies shall be filled as provided by paragraph (d) hereof.

§ 15.1-700. Board of county supervisors; election; terms; chairman; vacancies.— (a) A. The powers and duties of the county as a body politic and corporate shall be vested in a board of county supervisors.

(b) B. The board of county supervisors shall consist of one member elected from the county at large by the qualified voters of the county and one member from each magisterial district in the county elected by the qualified voters of such magisterial district. The members of the board shall be elected at the same time and for the same term as provided by general law for the election of boards of supervisors of counties. The board shall elect its chairman from its membership.

(c) C. Members of the board of supervisors of the county in office immediately prior to the day upon which the county board form becomes effective in the county shall be and, unless sooner removed, continue as members of the board of county supervisors until the expiration of their respective terms and until their successors are qualified.

(d) D. If the change in the form of county organization and government becomes effective on the first day of January 1 next succeeding the regular election of members of the board of

supervisors in the county, such members-elect shall qualify and, as soon as possible after the county board form becomes effective in the county, succeed the then incumbents as members of the board of county supervisors and as such continue until the expiration of their respective terms and until their successors are qualified.

(e) *E.* At the regular November election next succeeding the approval of the county board form, one member of the board shall be elected from the county at large by the qualified voters of the county; his term of office shall begin on the first day of January 1 next succeeding such election and shall run for a term coincident with that of the other members of the board of county supervisors. Pending his election and taking office, the office of member from the county at large shall remain vacant.

(f) *F.* Except as otherwise provided in paragraph (e) subsection *E* of this section, when any vacancy shall occur in the membership of the board of county supervisors; the judge of the circuit court of the county shall issue a writ of election to fill such vacancy. Such election shall be held at the next regular November election or, if the vacancy occurs within 120 days prior to such election, the second ensuing general election. The person so elected shall hold office for the unexpired term of the member whom such person is elected to succeed. The judge may make a temporary appointment to fill such vacancy until the people fill the same by election as herein provided shall be filled pursuant to Article 6 (§ 24.2-225 et seq.) of Chapter 2 of Title 24.2.

§ 15.1-760.1. *Special elections; changes in form of government.*—In any case in which the voters of a county are authorized to petition for a referendum on changing the county's form of government and organization in accordance with § 15.1-757, the number of signatures of qualified voters required on the petition shall be equal to or greater than ten percent of the number of voters registered in the county on January 1 of the year in which the petition is filed.

Any referendum concerning such change in the county's form of government and organization shall be ordered to be held on the next November general election date at least sixty days after the date of the order.

§ 15.1-808. *Vacancies in council.*—When any vacancy shall occur occurs in the council of a city having one branch, or in either branch of for any reason, whether when a member-elect fails to take office or during a member's term, the vacancy shall be filled pursuant to Article 6 (§ 24.2-225 et seq.) of Chapter 2 of Title 24.2. the council of any city having two branches, by death, resignation, removal from the ward, failure to qualify or from any other cause, the council, or the branch; as the case may be, in which such vacancy occurs; shall elect a qualified person to fill the vacancy for the unexpired term, except that if there should be vacancies of a majority of the council, or either branch thereof, for any reason, then the circuit court, or the judge thereof in vacation, or the corporation court of the city, or the judge thereof in vacation, shall pending the next ensuing general election or, if the vacancy occurs within 120 days prior to such election, pending the second ensuing general election, fill such vacancies of such members who have died, resigned or removed from the ward, from the persons qualified to hold such offices.

§ 15.1-816. *Filling vacancy in office of mayor.*—Within ten days after such death, resignation or removal of the mayor, the corporation court of the city shall order a special election which shall be held within thirty days after such order is entered, to fill the unexpired term of such mayor; provided, the unexpired part of the term remaining after such election is as much as one year. But nothing in this section shall be construed to alter or repeal the provisions of the charter of any city regulating the filling of any vacancy in the office of the mayor. When a vacancy occurs in the office of mayor for any reason, whether when the mayor-elect fails to take office or during the mayor's term, the vacancy shall be filled pursuant to Article 6 (§ 24.2-225 et seq.) of Chapter 2 of Title 24.2.

§ 15.1-830. *Council of town may punish or expel members; vacancies.*—The council of a town shall judge of the election, qualification, and returns of its members; may fine them a member for disorderly behavior and, with the concurrence of two-thirds, expel a member. If any person returned be adjudged disqualified or be expelled, a new election to fill the vacancy shall be held at the same place, on such day as the council may prescribe, except that when there shall be vacancies in the majority of the council the circuit court or the judge thereof in vacation, shall fill such vacancies. Any vacancy occurring otherwise during the term for which any of such persons have been elected may be filled by the council from the electors of the town. A vacancy in the office of mayor may be filled by the council from the electors of the town. In the event a vacancy occurs on the council or in the office of mayor, whether occurring when an officer-elect fails to take office or during the person's term of office, the vacancy shall be filled pursuant to Article 6 (§ 24.2-225 et seq.) of Chapter 2 of Title 24.2; however, if the vacancy on council occurs in any town, regardless of population, because council has expelled a member, the person appointed by council to fill the vacancy shall serve only until the vacancy can be filled for the remainder of the term in a special election pursuant to § 24.2-226.

§ 15.1-933. *How vacancies in council filled.*—If any vacancy occur in the membership of any council herein provided for, whether because a member-elect fails to take office or during the

member's term of office, the remaining members shall fill the vacancy for the unexpired term shall be filled pursuant to Article 6 (§ 24.2-225 et seq.) of Chapter 2 of Title 24.2.

2. That the provisions of this act shall become effective on December 1, 1993, and shall take effect only upon the repeal of Title 24.1 and enactment of Title 24.2 of the Code of Virginia.

CHAPTER 732

An Act to amend and reenact §§ 56-537 and 56-543 of the Code of Virginia, relating to the Virginia Highway Corporation Act of 1988.

[S 608]

Approved March 28, 1993

Be it enacted by the General Assembly of Virginia:

1. That §§ 56-537 and 56-543 of the Code of Virginia are amended and reenacted as follows:

§ 56-537. Policy.—The General Assembly finds that there is a compelling public need for rapid construction of safe and efficient highways for the purpose of travel within the Commonwealth, and that it is in the public interest to encourage construction of additional, safe, convenient, and economic highway facilities by private parties, provided that adequate safeguards are provided against default in the construction and operation obligations of the operators of roadways. The public interest shall include without limitation the relative speed of the construction of the project and the relative cost efficiency of private construction of the project. *The General Assembly further finds that the use of public funds for the purposes set forth in this section is in the public interest.* Accordingly, the General Assembly finds that this chapter is necessary for the public convenience, safety and welfare.

§ 56-543. Powers and duties of roadway operator.—A. The operator shall have all power allowed by law generally to persons having the same form of organization as the operator, including, without limitation, the authority to operate the roadway and charge tolls for the use thereof, and may pledge any revenue net of operational expenses realized from tolls charged for the use of the roadway in order to secure repayment of any obligations incurred for the construction, enlargement or operation of such roadway. Any financing of the acquisition, construction, enlargement, or operation of the roadway may be in such amounts and upon such terms and conditions as may be deemed necessary or appropriate by the operator to provide for the acquisition, construction, enlargement, and operation of the roadway, issuance costs, other financing obligations, and reasonable reserves. ~~The Commonwealth shall not obligate its full faith and credit on any financing of the operator.~~ Assumption of operation of the project shall not obligate the Commonwealth to pay any obligation of the operator whether secured or otherwise, from sources other than toll revenue. Subject to applicable permit requirements, the operator shall have the authority to cross any canal or navigable watercourse so long as the crossing does not unreasonably interfere with navigation and use of the waterway. In operating the roadway, the operator may:

1. Classify traffic according to reasonable categories for assessment of tolls; and
2. With the consent of the Department, make and enforce reasonable regulations, including regulations:
 - a. Which set maximum and minimum speeds that shall conform to Department and state practices;
 - b. Which exclude undesirable vehicles or cargoes or materials from the use of the roadway;or
 - c. Which establish commuter lanes for use during all or any part of a day and limit the use of such lanes to certain traffic.

3. The enumeration of powers in this subsection shall not limit the power of the operator to do anything it deems necessary and appropriate in the operation of the roadway, provided that the practice is reasonable and nondiscriminatory. The powers granted to the operator in this subsection shall not be deemed to limit the authority of the Commission to regulate the operator under Title 56.

B. The operator shall have the following duties:

1. It shall file and maintain at all times with the Commission an accurate schedule of rates charged to the public for use of all or any portion of the roadway and it shall also file and maintain a statement that such rates will apply uniformly to all users within any such reasonable classification as the operator may elect to implement. These rates shall be neither applied nor collected in a discriminatory fashion, and free vehicular passage shall be permitted